

		Defendants were diligent in preparing for trial and trying to follow up with Mr. Hampton, but he did not keep them informed or finish preparing them for trial. Defendants also were diligent in pursuing this motion, filing it approximately one month after entry of judgment. Plaintiff points to prejudice as a factor to be considered, but Plaintiff does not identify any specific prejudice she would suffer or provide any evidence of prejudice. The only potential prejudice is the delay that will result and the expense of the one-day trial, but Plaintiff presents no evidence or argument to show that rises to the level of substantial prejudice sufficient to justify denying this motion. Accordingly, based on the court's balancing of the foregoing factors, the court finds they weigh in favor of granting Defendants relief, and therefore the motion is GRANTED. At the hearing, the court will assign this matter to a new judicial officer (the previously assigned judicial officer, Judge Larsh, has retired), and schedule a trial setting conference. Defendants' counsel is ordered to give notice of this ruling.
13.	<i>DMC Charter Service, LLC vs. Namdar</i> <i>2024-01399364</i>	On calendar is the continued hearing on the order to show cause and affidavit for contempt the court first signed and issued on January 5, 2026, ordering defendant and judgment debtor Bjian Namdar (Debtor) to appear in court and show cause why he should not be held in contempt of court for willfully failing to comply with the court's order. Specifically, the order to show cause was issued on the application of plaintiffs and judgment creditors DMC Charter Service, LLC and DeMarre Carroll (collectively, Creditors) based on Debtor's alleged willful failure to comply with the court's May 15, 2025 order for Debtor to respond to Creditors' request for production of documents and to produce all responsive documents. This matter was last on calendar on May 14, 2026. A few days before that hearing, Creditors filed a proof of service showing they had personally served Debtor with the order to show cause and all supporting documents. Debtor, however, did not appear for the May 14 hearing. Accordingly, the court continued the hearing to today's date with an admonition and caution to Debtor that they proceeding may proceed in his absence or a bench warrant may be issued for his arrest if he failed to appear today. Creditors submitted a new order to show cause with today's date that the court signed on June 10, 2026. Since the last hearing, the court has not received any proof of service or

		other evidence showing Debtor was served with the new order to show cause or any other form of notice of today's hearing. The parties are ordered to appear for the hearing to discuss how to proceed with this matter.
14.	<i>Brimm vs. Mobilitas Insurance Company</i> 2026-01565804	Before the court are the hearings on the following motions filed by Mobilitas Insurance Company (Mobilitas): (1) the continued hearing on the motion to compel Kyle Brimm (Brimm) to respond to request for production of documents, set one, and request for monetary sanctions, (2) the initial hearing on the motion to compel Brimm to respond to special interrogatories, set one, and request for sanctions, and (3) the initial hearing on the motion to compel Brimm to respond to form interrogatories, set one, and request for sanctions. The original hearing on the motion to compel responses to the document requests was set for June 25, 2025. Prior to the hearing, the court posted the following tentative ruling, to which Mobilitas submitted: "Before the court is the motion of Mobilitas Insurance Company (Mobilitas) to compel [K]yle Brimm (Brimm) to respond to requests for production of documents, set one, and request for monetary sanctions. As set forth below, the motion is CONTINUED TO THURSDAY, JULY 9, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Mobilitas to demonstrate this court has jurisdiction over Brimm and that this court is the proper court for these proceedings. "This case is an uninsured or underinsured motorist case filed pursuant to Insurance Code section 11580.2, subdivision (f), to obtain a case number for purposes of having the court resolve any discovery disputes that may arise between the parties or otherwise make any other appropriate orders in aid of the arbitration between the parties. By the current motion, Mobilitas seeks an order compelling Brimm to respond to document requests Mobilitas propounded. "Mobilitas, however, has failed to establish this court is the proper venue for these proceedings. Section 11580.2, subdivision (f), provides the superior court having jurisdiction over uninsured motorist proceedings such as this is the superior court (a) in the proper county for the filing of a lawsuit against the uninsured motorist for bodily injury arising from the accident or (b) in any county specified in the policy as a proper county for arbitration or